IN THE COURT OF THE SESSIONS JUDGE, ERNAKULAM
CRIMINAL REVISION PETITION NO. 118 OF 2024
(Under Sections 397 and 401 of the Code of Criminal Procedure, 1973)

Thomas Kurian,
S/o Shri Kurian Joseph, aged about 54 years,
R/o Kaloor, Ernakulam ... Revision Petitioner

Versus

1. State of Kerala, represented by the Sub Inspector of Police, Kaloor Police Station
2. Mary Sebastian ... Respondents

CRIMINAL REVISION PETITION

1. That this revision petition is directed against the order dated 12/04/2024 passed by the learned Judicial First Class Magistrate, Ernakulam in C.C. No. 812 of 2022, whereby the application of the Revision Petitioner for discharge under Section 239 Cr.P.C. was dismissed.

2. That the learned Magistrate exercised revisional jurisdiction erroneously in holding that a prima facie case exists, when the documents relied upon by the prosecution themselves demonstrate that no offence is made out against the Revision Petitioner.

3. That the impugned order suffers from a patent illegality and material irregularity warranting interference in exercise of the revisional jurisdiction of this Hon'ble Court.

It is therefore prayed that the impugned order dated 12/04/2024 be set aside and the Revision Petitioner be discharged.

Ernakulam Advocate for the Revision Petitioner
Dated: 08/05/2024 Shri P. J. Antony